



United States
Attorney's Office
Southern District of New York



Florida Man Sentenced To 42 Months For Multimillion-Dollar Medicare Fraud Scheme

Friday, May 30, 2025

For Immediate Release

U.S. Attorney's Office, Southern District of
New York

Jay Clayton, the United States Attorney for the Southern District of New York, announced today that ALAN SWISS was sentenced to 42 months in prison for participating in a multimillion-dollar conspiracy to defraud Medicare. SWISS pled guilty on January 22, 2025, before U.S. District Judge John G. Koeltl, who imposed today's sentence.

“Swiss defrauded Medicare through creating, purchasing, and selling millions of dollars’ of false prescriptions for medical equipment,” said U.S. Attorney Jay Clayton. “Fraud of this kind not only wastes taxpayer dollars, but also drives up the cost of healthcare for all. Today’s sentencing sends a clear message: individuals who cheat Medicare will face justice.”

According to statements made in court and publicly filed documents in this case:

From approximately 2016 through April 2019, SWISS operated a call center named Tropical Medical Marketing, Inc., which cold-called Medicare beneficiaries and used their personal and medical information without the beneficiaries’ knowledge or consent, to prepare prescriptions for durable medical equipment (“DME”). SWISS then sold these DME prescriptions to co-conspirators who illegally obtained purported signatures or “authorizations” of health care providers, so that fraudulent claims could be submitted to Medicare for reimbursement.

From approximately 2017 through April 2019, SWISS also operated two DME supply companies: Modern Medical Equipment, Inc., which SWISS used primarily to bill Medicare directly under Medicare Part B, and A&E Medical, Inc., which SWISS used primarily to bill private insurance companies under Medicare Part C, also known as “Medicare Advantage.” To obtain the DME prescriptions that SWISS used to support his unlawful claims to Medicare, SWISS used two unlawful methods: purchasing such prescriptions outright and using patient information that SWISS had generated through his call center and purchasing the purported signatures or authorizations of health care providers. SWISS caused the two DME supply companies that he controlled to submit claims to Medicare for more than \$18 million—through the billing company operated by his co-defendants, ERIN FOLEY and TED ALBIN—on which Medicare paid out nearly \$6 million.

* * *

In addition to the prison term, SWISS, 52, of West Palm Beach County, Florida, was sentenced to three years of supervised released. SWISS was also ordered to forfeit \$6,650,929.76 and pay Medicare restitution in the amount of \$6,650,929.76.

Mr. Clayton praised the outstanding investigative work of the U.S. Department of Health and Human Services – Office of Inspector General.

This case is being handled by the Office’s Complex Frauds and Cybercrime Unit. Assistant U.S. Attorneys Rushmi Bhaskaran, Jackie Delligatti, Brandon Thompson, and William Kinder are in charge of the prosecution.

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